

Court No. - 10

Case :- CONTEMPT APPLICATION (CIVIL) No. - 3349 of 2019

Applicant :- Salman @ Mohd. Salman

Opposite Party :- Anil Kumar Garg, Executive Engineer

Counsel for Applicant :- U.C. Chaturvedi

Hon'ble Mahesh Chandra Tripathi,J.

Heard learned counsel for the applicant.

The applicant is before this Court for a direction to initiate contempt proceeding against the respondents for disobedience of the order dated 29.10.2018 passed in Writ-C No.35827 of 2018 (Salman @ Mohd. Salman v. State of U.P. & Ors.). For ready reference, the relevant extract of order dated 29.10.2018 is quoted as under:-

"We, therefore dispose of this writ petition with liberty to the petitioner to move an application before the respondent no.2, Executive Engineer, Pashchimanchal Vidyut Vitaran Nigam Ltd., Deoband, District Saharanpur under paragraph 6.14 of the U.P. Electricity Supply Code, 2005 with his offer of paying the entire amount in installments. If such an application is moved by the petitioner before the respondent no.2 within one week from today, the respondent no.2 shall take a decision on the petitioner's application in accordance with law within a period of one month thereafter.

Till such order is passed, it is provided that no coercive steps shall be taken against the petitioner for recovery of the amount in pursuance of the impugned recovery citation dated 14.09.2018."

Learned counsel for the applicant submits that a certified copy of the aforesaid order alongwith other documents was submitted for compliance before the opposite parties but the opposite parties have wilfully not complied with the order and, thus, have committed civil contempt liable for punishment under Section 12 of the Contempt of Courts Act, 1971.

Prima facie a case of contempt has been made out. However, considering the facts and circumstances of the case, one more opportunity is afforded to the opposite parties to comply with the aforesaid order of the Court within one month from the date of production of a certified copy of this order.

The applicant shall supply a duly stamped registered envelope addressed to the opposite parties and another self-addressed envelope to the office within one week from today. The office shall send a copy of this order along with the self-addressed envelope of the applicant with a copy of contempt application to the opposite parties within one week thereafter and keep a recorded thereof.

The opposite party shall comply with the directions of the writ court and intimate the applicant the order through the self-addressed envelop within a week thereafter.

With the aforesaid observations, this application is **disposed of** at this stage with liberty to the applicant to move a fresh application, if the order is not complied with by the opposite parties within the stipulated time as aforementioned.

Order Date :- 24.5.2019

A. Pandey